

Eega Prashanthi Reddy vs Sandeep Reddy N. on 22 March, 2023

Author: M.M. Sundresh

Bench: M.M. Sundresh

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IN THE SUPREME COURT OF INDIA
CIVIL ORIGINAL JURISDICTION

TRANSFER PETITION (C) NO.

1199 OF 2021

EEGA PRASHANTHI REDDY

.....

VERSUS

SANDEEP REDDY N.

.....

O R D E R

During the pendency of the transfer petition, the parties were referred to the Supreme Court Mediation Centre to explore possibility of settlement.

Mediation report dated 21.01.2023 has been received along with the settlement agreement dated 20.01.2023.

It is stated that a cheque of Rs.15,00,000/- (Rupees Fifteen Lakhs Only) issued by the respondent – Sandeep Reddy N. in favour of the petitioner – Eega Prashanthi Reddy, in terms of the settlement agreement dated 20.01.2023 has been encashed.

Learned counsel for the parties jointly pray that the settlement agreement dated 20.01.2023 may be taken on record and this Court may exercise its power under Article 142 of the Constitution of India to dissolve the marriage by way of decree of divorce by mutual consent and also quash the proceedings pending between the parties.

Petitioner – Eega Prashanthi Reddy and the respondent – Sandeep Reddy N. had got married on 10.03.2019, but it appears that they have been living separately and have not been co-habiting since 08.05.2019. They do not have any child.

In 2020, the respondent – Sandeep Reddy N. had filed divorce petition i.e., M.C. No. 5255 of 2020 under Section 13(1) (ia) & (ib) of the Hindu Marriage Act, 1955, titled “Sandeep Reddy N. vs. Eega Prashanthi Reddy”, which is pending before the Principal Judge, Family Court at Bangalore,

Karnataka.

Keeping in view of the aforesaid facts, we pass the decree of divorce by mutual consent dissolving the marriage between the petitioner - Eega Prashanthi Reddy and the respondent - Sandeep Reddy N. In view of the aforesaid decree, M.C. No. 5255 of 2020 under Section 13(1) (ia) & (ib) of the Hindu Marriage Act, 1955, titled "Sandeep Reddy N. vs. Eega Prashanthi Reddy" pending before the Principal Judge, Family Court at Bangalore, Karnataka will be treated as disposed of.

We also, hereby, deem it appropriate to pass an order quashing the following criminal proceedings initiated by the petitioner - Eega Prashanthi Reddy and the respondent - Sandeep Reddy N.:-

1. Case No. MC/0000115/2022 (CNR Number APFC080009852022) titled "Eega Prashanthi Reddy vs. Sandeep Reddy N." pending before the court of VI Additional District and Session Judge, Nellore, Andhra Pradesh.
2. Case No. PRC/0000001/2021 (CNR Number APNE130006262021) titled "The SI of Police, Rapur Police Station, Rapur vs. Narayan Reddy Sandeep Reddy and 2 others" pending before the Judicial Magistrate, First Class, Venkatagiri, SPSR Nellore District, Andhra Pradesh.
3. P.C.R. No. 5044/2021 titled "N. Sandeep Reddy vs. Eega Prashanthi Reddy & Ors. State of Andhra Pradesh & Anr.", pending before the court of the 32nd Additional Chief Metropolitan Magistrate, Bengaluru, Karnataka.

Consequently, Criminal Petition No. 1406 of 2022 titled "Narayan Reddy Sandeep Reddy & Ors. vs. State of Andhra Pradesh & Anr." pending before the High Court of Andhra Pradesh at Amaravati, Andhra Pradesh shall be treated as withdrawn/disposed of.

The parties would be bound and abide by the said settlement agreement.

It is clarified that this order has been passed in exercise of our jurisdiction/power under Article 142 of the Constitution of India.

Accordingly, the transfer petition and pending application(s), if any, shall be disposed of.

.....J. (SANJIV KHANNA)J. (M.M. SUNDRESH) NEW DELHI;

MARCH 22, 2023.

ITEM NO.1

COURT NO.7

SECTION XVI-A

S U P R E M E C O U R T O F
RECORD OF PROCEEDINGS

I N D I A

Transfer Petition(s) (Civil) No(s). 1199/2021

EEGA PRASHANTHI REDDY

Petitioner(s)

VERSUS

SANDEEP REDDY N.

Respondent(s)

(IA No. 82379/2021 - EX-PARTE STAY

IA No. 73249/2022 - EXEMPTION FROM FILING O.T.) Date : 22-03-2023 These matters were called on for hearing today. CORAM :

HON'BLE MR. JUSTICE SANJIV KHANNA HON'BLE MR. JUSTICE M.M. SUNDRESH For Petitioner(s) Mr. Mohd. Irshad Hanif, AOR Mr. Amar Kumar Raizada, Adv.

Mr. Saleem Khan, Adv.

Mr. B.g. Rajeswar, Adv.

Mr. Danish Sher Khaan, Adv.

Mr. Gurmeet Singh, Adv.

For Respondent(s) Ms. Anuradha Mutatkar, AOR Mr. S.n.bhat, Sr. Adv.

Mr. Tarun Kumar Thakur, Adv.

Mr. D.p.chaturvedi, Adv.

Ms. Parvati Bhat, Adv.

UPON hearing the counsel, the Court made the following O R D E R The transfer petition and pending application(s), if any, shall stand disposed of in terms of the signed order.

(BABITA PANDEY)
COURT MASTER (SH)

(R.S. NARAYANAN)
COURT MASTER (NSH)

(Signed order is placed on the file)